

PURCHASE AND SALE AGREEMENT

THIS PURCHASE AND SALE AGREEMENT (this "**Agreement**") is made and entered into as of the ____ day of July 2026 (the "**Effective Date**"), by and between AMERICUS SUMTER PAYROLL DEVELOPMENT AUTHORITY ("**Seller**"), and LIBERTY DATA CENTERS CORP. ("**Buyer**").

WITNESSETH

WHEREAS, Seller desires to sell certain property, and Buyer desires to purchase that property, all upon the terms and conditions contained in this Agreement.

NOW, THEREFORE, for and in consideration of the foregoing recitals, the sum of ONE AND NO/100THS DOLLAR (\$1.00), the commitment of Buyer to develop the Property, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Seller and Buyer agree as follows:

1. **Purchase and Sale.** Seller hereby agrees to sell and convey to Buyer, and Buyer hereby agrees to purchase and take from Seller, that certain real property of approximately 103 acres of land located on Swett Avenue in Americus, Sumter County, Georgia, identified as Parcel ID No. 64-17, as more particularly described in Exhibit A attached hereto and incorporated herein by reference, together with all improvements located thereon, all rights, ways and easements appurtenant thereto, and all related certificates, licenses, permits, development rights or similar documents (collectively, the "**Property**"), subject to and in accordance with all of the terms and conditions of the Agreement. Seller shall obtain, at Seller's sole cost as expense, a survey of the Property conducted by a licensed and registered Surveyor authorized to conduct such surveys in the State of Georgia. Such survey shall be provided to both parties prior to closing, and in the event that the survey is approved by both parties, it shall be filed of record in the office of the Clerk of Superior Court of Sumter County, Georgia such survey shall be used as the basis of the legal description to be used to describe the Property at closing.

2. **Purchase Price.** Buyer shall purchase the Property for a purchase price (the "**Purchase Price**") of One and 00/100 Dollar (\$1.00).

3. **Closing.** The closing (the "**Closing**") of the purchase and sale of the Property shall occur no later than thirty (30) days after the Effective Date (the "**Closing Date**") in escrow through Gatewood, Skipper, Rambo & Moore, P.C. 410 W. Lamar St., Americus, GA 31709, 229-924-9316 ("**Escrow Agent**").

4. **Access and Inspection; Examination by Buyer.** Buyer shall have until the Closing Date (the "**Inspection Period**") in which to examine the Property and investigate the Property, and to determine whether the Property is suitable and satisfactory to Buyer. If Buyer determines, in Buyer's sole and absolute discretion, that the Property is not suitable to Buyer, Buyer may terminate this Agreement by providing written notice to Seller prior to the expiration of the Inspection Period of its election to terminate this Agreement. Upon delivery of said termination notice, the Earnest Money shall be immediately refunded to Buyer and, thereafter, the parties shall have no further rights or obligations under this Agreement, except those that expressly survive the termination hereof.

5. **Closing Documents and Deliveries.** Seller shall convey good and marketable fee simple title to the Property by Limited Warranty Deed. Seller, and Buyer, as applicable, shall execute a Blanket Transfer and Assignment, a title affidavit, a certificate that the representations and warranties of Seller in this Agreement are true and correct on and as of the Closing Date, a completed 1099-S, an Economic Development Agreement, and a Closing Statement in connection with the consummation of the

transaction contemplated by this Agreement. The parties shall each execute and deliver such other documents or instruments as may be reasonably required to consummate the transaction contemplated hereby; provided, however, that the parties agree and acknowledge that the Seller has delivered to Buyer, prior to the execution of this Agreement, true and accurate copies of the following documents in the possession of Seller: (i) a wetlands report; (ii) a Phase I environmental study; and (iii) a copy of executed and recorded Limited Warranty Deed conveying the Property from the Board of Commissioners of Sumter County, Georgia to Seller.

6. **Costs of Closing.** Buyer shall pay: (a) all transfer taxes, deed fees, recording fees, and documentary fees and taxes, (b) all escrow fees of Escrow Agent, (c) all investigation costs incurred by Buyer, (d) title policy premium and search fees (and any endorsements thereof), and (e) Buyer's attorney fees. Real estate taxes for the Property in the year of the Closing shall be prorated as of the Closing Date. All other costs and expenses of the transaction contemplated hereby shall be borne by the party incurring the same.

7. **Warranties, Representations and Additional Covenants of Seller.** Seller hereby represents, warrants and covenants to and with Buyer, knowing that Buyer is relying on each such representation, warranty and covenant, that:

(a) Seller is a development authority established under the Constitution of the State of Georgia in 1962 (Georgia Laws, 1962, pp. 933-939) and is duly organized, validly existing and in good standing under the laws of the State of Georgia and has the right, power and authority to enter into this Agreement and to sell the Property to Buyer in accordance with the terms and conditions hereof; this Agreement and all other agreements to be executed by Seller in connection herewith have been (or upon execution will have been) duly executed and delivered by Seller, have been effectively authorized by all necessary action, and constitute (or upon execution will constitute) legal, valid and binding obligations of Seller enforceable against Seller in accordance with their respective terms;

(b) Seller has good and marketable fee simple title to the Property;

(c) There are no actions, suits or proceedings pending or threatened against, by or affecting Seller which affect title to the Property, or which question the validity or enforceability of this Agreement or of any action taken by Seller under this Agreement, in any court or before any governmental authority, domestic or foreign; and there are no pending, threatened or contemplated condemnation actions involving all or any portion of the Property; there are no judgments outstanding against Seller which relate to or which would hinder or prohibit consummation of the transactions contemplated by this Agreement;

(d) The execution of and entry into this Agreement, the execution and delivery of the documents and instruments to be executed and delivered by Seller on the Closing Date, and the performance by Seller of Seller's duties and obligations under this Agreement and of all other acts necessary and appropriate for the full consummation of the purchase and sale of the Property as contemplated by and provided for in this Agreement, are consistent with and not in violation of, and will not create any adverse condition under, any contract, agreement or other instrument to which Seller is a party, or any judicial order or judgment of any nature by which Seller is bound;

(e) Prior to the Closing, Seller shall operate the Property in the ordinary course of business; shall not make or enter into any lease or other agreement for the use, occupancy or possession of all or any part of the Property without the prior written approval of Buyer, and shall not encumber the Property in any way;

(f) There are no leases, licenses, or other agreements for use, occupancy or possession presently in force with respect to all or any portion of the Property;

(g) Seller will not cause or permit any action to be taken which will cause any of the foregoing representations, warranties or covenants to be untrue or not to be performed on the Closing Date;

(h) Other than as set forth in the Permitted Exceptions and Seller's knowledge, the Property is not subject to any use or occupancy restrictions (except those imposed by applicable zoning laws and regulations), special taxes and assessments or utility "tap-in" fees (except those generally applicable throughout the tax district in which the Property is located), or restrictions, whether existing of record or arising by operation of law, unrecorded agreements, the passage of time or otherwise;

(i) Seller has received no written notice of a violation of any zoning, building, health, environmental or other laws, codes, ordinances, regulations, orders or requirements of any city, county, state or other governmental authority having jurisdiction thereof, or any private restrictive covenants affecting the Property;

(j) There are no management, maintenance, service or other contracts with respect to the Property;

(k) On the Closing Date, Seller will not be indebted to any contractor, laborer, mechanic, material person, architect or engineer for work, labor or services performed or rendered, or for materials supplied or furnished, in connection with the Property for which any such person could claim a lien against the Property;

(l) Seller will pay or cause to be paid promptly when due all city, state and county ad valorem taxes and similar taxes and assessments, all sewer and water charges and all other governmental charges levied or imposed upon or assessed against the Property between the date hereof and the Closing Date, and will pay or cause to be paid all expenses incurred with respect to the Property between the date hereof and the Closing Date;

(m) To Seller's knowledge, there are no known violations of any local, state or federal pollution control laws as the Property is presently being used and occupied, and if Seller receives notice of any such violation, Seller, at its sole expense, shall comply with any requirements of such notice prior to Closing;

(n) To Seller's knowledge, the Property has never been used as a land fill to receive solid waste, whether or not hazardous, and specifically has never been used for the disposal, storage or treatment of "hazardous substance" as such term is defined in the Comprehensive Environmental Response, Compensation and Liability Act of 1980, as amended; the Property does not contain asbestos insulation or electrical transformers cooled by phenylchlorobenzene (PCB's);

(o) To Seller's knowledge, all written information and data furnished by Seller to Buyer with respect to the Property will be true, correct, complete and not misleading; and

(p) Seller will deliver on the Closing Date all documents and instruments required by this Agreement and perform all acts necessary or appropriate for the consummation of the purchase and sale of the Property as contemplated by and provided for in this Agreement.

8. **Warranties, Representations and Covenants of Buyer.** Buyer represents, warrants and covenants to and with Seller, knowing that Seller is relying on each representation, warranty and covenant, that:

(a) Buyer is a corporation duly organized, validly existing and in good standing under the laws of the Ontario, Canada;

(b) There are no actions, suits or proceedings pending or threatened against, by or affecting Buyer which question the validity or enforceability of this Agreement or of any action taken by Buyer under this Agreement, in any court or before any governmental authority, domestic or foreign;

(c) The execution of and entry into this Agreement and the performance by Buyer of Buyer's duties and obligations under this Agreement and of all other acts necessary and appropriate for the full consummation of the purchase and sale of the Property as contemplated by and provided for in this Agreement, are consistent with and not in violation of any contract, agreement or other instrument to which Buyer is a party, or any judicial order or judgment of any nature by which Buyer, or any officer of Buyer, is bound; and this Agreement, and the covenants and agreements of Buyer under this Agreement, are the valid and binding obligations of Buyer, enforceable in accordance with their terms; and

(d) Buyer will deliver on the Closing Date all documents and instruments required by this Agreement for the consummation of the purchase and sale of the Property.

9. **Remedies.**

(a) If the purchase and sale of the Property is not consummated in accordance with the terms and conditions of this Agreement due to circumstances or conditions which constitute a default by Buyer under this Agreement, Seller may pursue remedies available at law.

(b) If the purchase and sale of the Property is not consummated in accordance with the terms and conditions of this Agreement due to circumstances or conditions which constitute a default by Seller under this Agreement, Buyer may pursue remedies available at law.

10. **Property Sold As Is, Where Is, and With All Faults.** The Property is being sold to Buyer As Is, Where Is, and With All Faults, and Seller makes no representation or warranties, either express or implied with respect to the Property, its present condition, its fitness or suitability for a particular purpose except with respect to the Limited Warranty of Title required in accord with Paragraph 5 hereof. Buyer shall rely solely upon its own investigation during the Inspection Period of the present condition of the property and of all governmental laws and ordinances which might affect the use and development of the Property.

11. **Broker and Commission.** The parties hereto acknowledge that no broker, agent or finder has been engaged in connection with the transaction contemplated by this Agreement. Seller and Buyer warrant and represent to each other that there are and will be no broker's commission or fees payable in connection with this Agreement or the purchase and sale of the Property by reason of their respective dealings, negotiations or communications. Seller hereby indemnifies and holds harmless Buyer from all liability, expense, loss, cost or damage, including reasonable attorneys' fees and costs that may arise by reason of any claim, demand or suit of any broker or agent who may claim a commission for representing Seller in connection with this transaction. Buyer hereby indemnifies and holds harmless Seller from all liability, expense, loss, cost or damage, including reasonable attorneys' fees and costs that may arise by reason of any claim, demand or suit of any broker or agent who may claim a commission for representing Buyer in connection with this transaction. The foregoing indemnity obligations shall survive

Closing or the earlier termination of this Agreement. Notwithstanding the foregoing, Seller and Buyer hereby agree and acknowledge that Rusty Warner, Executive Director of Seller, is a licensed real estate broker in the State of Georgia (License No. 164935). Mr. Warner does not have an interest in the transactions contemplated by this Agreement, and no consideration or brokerage fees have been or will be charged by Mr. Warner in connection with the transactions contemplated by this Agreement.

12. Possession at Closing. Seller shall surrender possession of the Property to Buyer on the Closing Date.

13. Further Assurances; Survival. At Closing, Seller shall do all such additional and further acts, and shall execute and deliver all such additional and further deeds, affidavits, instruments, certificates and documents, as Buyer, Buyer's counsel or Buyer's title insurer may reasonably require fully to vest in and assure to Buyer full right, title and interest in and to the Property to the full extent contemplated by this Agreement and otherwise to effectuate the purchase and sale of the Property as contemplated by and provided for in this Agreement. All the provisions of this Agreement (including, without limitation, the representations, covenants and warranties of Seller and Buyer as set forth in this Agreement), shall survive the consummation of the purchase and sale of the Property on the Closing Date, the delivery of the deed and the payment of the Purchase Price for a period of one year.

14. Attorneys' Fees and Costs. In the event either party to this Agreement commences a legal proceeding to enforce any of the terms of this Agreement or any rights under this Agreement, the prevailing party in such action shall be entitled to recover reasonable attorneys' fees and costs from the other party.

15. Counterparts. This Agreement may be executed in any number of counterparts, each of which shall constitute an original and all of which, when taken together, shall constitute one instrument.

16. Successors and Assigns. Buyer may assign this Agreement to an entity affiliated with Buyer. Written notice of any such assignment shall be provided to Seller within thirty (30) calendar days of the date of such Assignment in the manner provided in Paragraph 20 hereof. This Agreement shall apply to, be binding upon and inure to the benefit of, the parties hereto and their respective successors, executors, administrators, legal representatives, heirs and assigns.

17. Georgia Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Georgia.

18. Time of Essence. Time is and shall be of the essence of this Agreement; provided, however, that if the time within which any action, consent, approval or other activity contemplated, expires on a Saturday, Sunday or a national bank holiday, such time period shall automatically be deemed extended to the first day after the scheduled termination of such time period which is not a Saturday, Sunday or national bank holiday. A "**Business Day**" means any day Monday through Friday that is not a national bank holiday.

19. Captions. The captions and headings used in this Agreement are for convenience only and do not in any way restrict, modify or amplify the terms of this Agreement.

20. Notices. All notices, requests, demands, tenders and other communications under this Agreement shall be in writing. Any such notice, request, demand, tender or other communication shall be deemed to have been duly given if personally delivered, sent via overnight courier service, deposited in the United States Mail, Certified Mail, Return Receipt Requested, with all postage prepaid, to the address for each party set forth below, or sent via electronic mail or facsimile. Any party, by written notice to the

others in the manner herein provided, may designate an address different from that stated above. Notices to Buyer, Seller and Escrow Agent shall be addressed as follows:

If to Buyer:

Liberty Data Centers Corp.
76 Creedmore Court
Kleinburg, Ontario
L4H 4E5
Canada
Attn: Tony Di Benedetto
Email: ~~tony@libertydata.com~~ TONY@LIBERTY6A-10

with a copy to:

Krevolin & Horst, LLC
1201 W. Peachtree Street, NW
Suite 3500
Atlanta, Georgia 30309
Attn: Jacquelyn A. Caroe, Esq.
Email: caroe@khlawfirm.com

If to Seller:

Americus Sumter Payroll Development Authority
P.O. Box 925
Americus, Georgia 31709
Attn: Rusty Warner
Email: RustyWarner@msn.com

with a copy to:

Gatewood, Skipper, Rambo & Moore
P.O. Box 488
410 West Lamar Street
Americus, GA 3709
Attn: Jimmy Skipper
Email: JSkipper@AmericusLaw.com

21. Economic Development Project. Buyer intends to purchase the Property to develop, construct, and install a data center facility, an innovation center, and an office complex thereon in accordance with the terms of an Economic Development Agreement to be entered into by Buyer and Seller (the "**Economic Development Agreement**"). The purpose and operations of the data center and the operations of the innovation center shall be described in Exhibit "B" hereto. The Preliminary Development Schedule for Phase 1 of the development is attached hereto as **Exhibit B** and incorporated herein by this reference. The obligations and covenants of Buyer and Seller set forth herein, which relate to the economic development of the Property, shall survive termination of this Agreement or the closing of the transaction contemplated herein until Buyer conveys or transfers all of its current or future interest in the Property.

22. Additional Provisions. (A) Notwithstanding any other provision of this Agreement, or of any exhibits to this Agreement, Seller shall have the absolute right and option to re-purchase the Property from Buyer for the total sum of \$1.00 in the event that either (i) the Property must be re-zoned under the City of Americus Zoning Code to allow Buyer to undertake Buyer's proposed use or uses of the Property, and that the governing body of the City of Americus does not approve such re-zoning in accord with state law or local zoning ordinances; or (ii) the Buyer is unable or unwilling to obtain all required licenses, permits, environmental approvals, water facilities and connections, sewer facilities and connections, wastewater treatment facilities, electrical facilities to operate Buyer's proposed improvements, under either federal, state, or local laws, regulations, and ordinances, which will allow

IN WITNESS WHEREOF, the parties have caused their duly authorized representatives to execute, seal and deliver this Agreement, all as of the Effective Date.

SELLER:



**AMERICUS SUMTER PAYROLL
DEVELOPMENT AUTHORITY**

By: [Signature]
Name: Paul V. Hall
Title: Chairman of Board

BUYER:

LIBERTY DATA CENTERS CORP.

By: [Signature]
Name: TONY D. SENEDEMO
Title: CEO

EXHIBIT A

That certain tract or parcel of land situate, lying and being in Land Lots 202 and 203 in the 27th Land District of Sumter County, Georgia, containing 103 acres, more or less, particularly described as follows:

START at the point where the west right of way of the Seaboard Coastline Railroad intersects the south lot line of Land Lot 202, and run thence along said railroad north 14°09' west 732 feet; north 17°51' west 271.9 feet; north 30°09' west 194.7 feet; north 40°38' west 154.6 feet; north 52°08' west 210 feet; north 66°52' west 248.3 feet; north 81°05' west 342.5 feet; north 89°40' west 435.6 feet; thence south 0°20' west 150 feet; thence north 89°40' west 510 feet; thence south 13°10' east 400 feet; thence north 89°40' west 665 feet to Willet's Branch; thence along the run of Willet's Branch 720 feet, more or less, to the south line of Land Lot 203; thence along the south line of Land Lot 203 and 202 due east 700 feet; north 87°55' east 710.8 feet; north 88°16' east 998.6 feet; south 88°41' east 1260.7 feet to the west right of way of the Seaboard Coastline Railroad right of way and the point of beginning. All as shown according to plat of survey prepared by James R. Littlefield, Surveyor, Georgia Register No. 1304, dated March 12, 1973, a copy of which appears of record in Plat Book 8, page 129 of the records of the Clerk of the Superior Court of Sumter County, Georgia, and is by reference made a part of this description.

This is the same property conveyed by the Americus and Sumter County Development Corporation to Sumter County, Georgia, by deed of conveyance dated March 20, 1973, and recorded in Deed Book 129, Page 370 of the Sumter County Deed Records.

This property is tax parcel 64 17 of the City of Americus ad valorem tax records.

EXHIBIT B

Preliminary Phase 1 Development Schedule – Americus Tech Campus (Phase 1 – 100 MW)

The parties acknowledge that the following represents a preliminary estimated development schedule for the initial phase of the Americus Tech Campus project. The Developer anticipates that a substantial portion of the initial Phase 1 development may be completed within approximately twenty-four (24) months from project commencement, subject to permitting, utility coordination, market conditions, supply chain availability, weather conditions, and other customary development factors.

Estimated Time Frames

- Project launch, master planning, engineering, and permitting activities
- Community outreach and academic partnership initiatives
- Land clearing, grading, and site preparation activities
- Stormwater, roadway, and underground utility infrastructure
- Substation pad and electrical infrastructure development
- Warehouse and logistics facility construction
- Phase 1 data center construction activities
- Tech Innovation Center construction activities
- Mission critical infrastructure installation and integration
- Workforce development, apprenticeship, and educational program implementation
- Utility energization, commissioning, and operational readiness activities
- Initial Phase 1 campus operational readiness and occupancy activities

Subsequent Expansion Phases

Subsequent expansion phases will further develop the project's infrastructure, with a focus on enhancing and scaling the data center facilities over the coming years.

Job Creation

The construction of the Americus Tech Campus is projected to generate approximately 500 jobs throughout the construction / build-out periods.

Upon completion, the ongoing operation, staffing, and maintenance of the Americus Tech Campus is expected to support approximately 200 positions.

Build Out Costs

It is estimated that the build out cost will be ~ \$1-\$5 Billion over all the phases.

Seller's Clawback

In the event Buyer fails to develop the Property in accordance with the terms hereof, and Buyer fails to begin to cure any such default within thirty (30) days of receiving written notice from Seller detailing the alleged default, Buyer shall pay Seller \$_____ each week/month until the default has been reasonably cured. Notwithstanding the foregoing or anything to the contrary contained herein, Buyer shall have the right, at any time and in its sole discretion, to terminate its development of the Property and to require Seller to buy back the Property from Buyer for \$1.00.

EXHIBIT C

Preliminary DRAFT Renderings – Americus Tech Campus

To be located off the southern boundary of Swett Ave, Americus, Georgia.



